

COLIN PAUL SUTHERLAND, Plaintiff,
v.
SECURITIES AND EXCHANGE COMMISSION ("SEC"); CITADEL SECURITIES LLC;
VIRTU FINANCIAL INC.; JANE STREET GROUP LLC; SUSQUEHANNA
INTERNATIONAL GROUP LLP; INVESCO LTD.; JOHN DOES 1-100 MARKET MAKERS,
Defendants.

No. 25-CV-9422 (LTS).

United States District Court, S.D. New York.

November 26, 2025.

ORDER OF DISMISSAL

LAURA TAYLOR SWAIN, Chief District Judge.

Plaintiff, who is appearing *pro se*, brings this action, under the Court's federal question jurisdiction, alleging that Defendants violated the Securities and Exchange Act of 1934. The Court dismisses the complaint without prejudice for the following reasons.

Plaintiff has previously submitted the identical complaint to this court, and that matter is pending under docket number 25-CV-9233 (LTS). Plaintiffs generally have no right to maintain multiple actions "involving the same subject matter at the same time in the same court and against the same defendant." Adams v. Calif. Dep't of Health Servs., 487 F.3d 684, 688 (9th Cir. 2007), *overruled on other grounds by Taylor v. Sturgell*, 553 U.S. 880, 904 (2008) (internal quotation marks omitted). District courts thus have discretion to dismiss a later-filed action that is duplicative of proceedings already before it. *Id.*; see also Humphrey v. Ct. Clerk ex rel. U.S. Sup. Ct., No. 5:11-CV-0938, 2012 WL 264603, at *3 (N.D.N.Y. Jan. 30, 2012) (holding that "dismissal of an action as duplicative has been found to fall within the ambit of the Court's power to dismiss a complaint ... pursuant to 28 U.S.C. § 1915(e)").

As this complaint raises the same claims, no useful purpose would be served by litigating this duplicate lawsuit. Therefore, this complaint is dismissed without prejudice to Plaintiff's pending case under docket number 25-CV-9233.

CONCLUSION

Plaintiff's complaint is dismissed without prejudice as duplicative of No. 25-CV-9233.

The Court certifies, pursuant to 28 U.S.C. § 1915(a)(3), that any appeal from this order would not be taken in good faith and therefore *in forma pauperis* status is denied for the purpose of an appeal. See Coppedge v. United States, 369 U.S. 438, 444-45 (1962).

The Clerk of Court is directed to enter judgment dismissing this case.

SO ORDERED.

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